ELATING TO

THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973RESOLUTION MEPC.216(63)

Adopted on 2 March 2012

THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973

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RESOLUTION MEPC.217(63)

Adopted on 2 March 2012

OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETORESOLUTION MEPC.217(63)

Adopted on 2 March 2012

INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM

SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO

(Regional arrangements for port reception facilities under MARPOL Annex VI and

Certification of marine diesel engines fitted with Selective Catalytic Reduction

systems under the NO. Technical Code 2008)

THE MARINE ENVIRONMENT PROTECTION COMMITTEE,

RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Marine Environment Protection Committee conferred upon it by international conventions for the prevention and control of marine pollution,

NOTING article 16 of the International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1973 Convention") , article VI of the Protocol

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NOTING article 16 of the International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1973 Convention") , article VI of the Protocol of 1978 relating to the International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1978 Protocol") and article 4 of the Protocol of 1997 to amend the tnternational Convention for the Prevention of Pollution from Ships, 1973, as modified by the Protocol of 1978 relating thereto (hereinafter referred to as

the "1997 Protocol"), which together specify the amendment procedure of the 1997 Protocot and confer upon the appropriate body of the Organization the function of considering and adopting

NOTING that, by the 1997 Protocot, Annex Vt entitled Regutations for the Prevention of Air Pollution from Ships was added to the 1973 Convention (hereinafter referred to as "Annex VI"),

NOTING FURTHER regulation 13 of MARPOL Annex VI which makes the Technical Code on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (NO, Technical Code) mandatory under that Annex,

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NOTING FURTHER regulation 13 of MARPOL Annex VI which makes the Technical Code on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (NO, Technical Code) mandatory under that Annex,

NOTING ALSO that both the revised Annex VI adopted by resolution MEPC.176(58) and the NO. Technical Code 2008 adopted by resolution MEPC.177(58) entered into force

on 1 July 2010,

HAVING CONSIDERED draft

Code 2008,

1. ADOPTS, in accordance with article 16(2)(d) of the 1973 Convention, the

arnendments to Annex VI and the NO. Technical Code 2008, the text of which is set out in

thet annex to the present resolution;

2. DETERMINES, in accordance with article 16(2)(f)(iii) of the 1973 Convention, that

the amendments shall be deemed to have been accepted on 1 February 2013, unless prior

to that date, not less than one third of the Parties or Parties the combined merchant fleets of

which constitute not less than 50 per cent of the gross tonnage of the world's merchant fleet,

have communicated to the Organization their objection to the amendments;

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which constitute not less than 50 per cent of the gross tonnage of the world's merchant fleet,

have communicated to the Organization their objection to the amendments;

3. INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of

the 1973 Convention, the said amendments shall enter into force on 1 August 2013 upon

their acceptance in accordance with paragraph 2 above;

RESOLUTION MEPC.217(63)

Adopted on 2 March 2012

OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO-2-

4. REQUESTS the Secretary-General, in conformity with article 16(2)(e) of

the 1973 Convention, to transmit to all Parties to the 1973 Convention, as modified by

the 1978 and 1997 Protocols, certified copies of the present resolution and